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CCS (Leave) Rules, 1972

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Central Civil Services (Leave) Rules, 1972

Chapter I: Preliminary

Rule 1. Short Title and Commencement

These rules may be called the Central Civil Services (Leave) Rules, 1972. They came into force on **1st June, 1972**.

Rule 2. Extent of Application

These rules shall apply to Government servants appointed to the civil services and posts in connection with the affairs of the Union.

Exceptions:

These rules do not apply to the following categories:

- (a) Railway Servants.
- (b) Persons in casual and daily-rated employment.
- (c) Persons paid from contingencies.
- (d) Workmen employed in industrial establishments.
- (e) Persons employed in work-charged establishments.
- (f) Members of All India Services (IAS, IPS & IFS).
- (g) Persons locally recruited for service in diplomatic, consular, or other Indian establishments in foreign countries.
- (h) Persons employed on contract, except when the contract provides otherwise.
- (i) Persons serving under a Central Government Department on deputation from a State Government or any other source for a limited duration.

Rule 3. Definitions

In these rules, unless the context otherwise requires:

- **(a) Administrator:** Means an Administrator of a Union Territory.

- **(b) Audit Officer:** Means the Accounts and Audit Officer.
- **(c) Authority competent to grant leave:** Means the authority specified in the First Schedule to these rules, competent to grant the kind of leave specified.
- **(d) Completed years of service:** Means continuous service of specified duration under the Central Government and includes the period spent on duty as well as on leave, including extraordinary leave.
- **(e) Date of retirement:** In relation to a Government servant, means the afternoon of the last day of the month in which the Government servant attains the age prescribed for retirement.
- **(f) Department of the Central Government:** Means a Ministry or a Department of the Central Government.
- **(fa) Disability:** Means "Specified Disability", "Benchmark disability" and "disability having high support needs" as referred to in the **Rights of Persons with Disabilities Act, 2016** (49 of 2016).
- **(g) Foreign service:** Means service in which a Government servant receives his pay with the sanction of Government from any source other than the Consolidated Fund of India, the Consolidated Fund of any State, or the Consolidated Fund of a Union Territory.
- **(h) Form:** Means a Form appended to the Second Schedule to these rules.
- **(i) Government servant in quasi-permanent employ:** Means:
 - (1) An officer declared by the UPSC eligible for appointment to Ministerial Services, appointed to a temporary/officiating vacancy, with a written understanding that the vacancy is expected to become permanent, but not confirmed after **3 years** continuous service.
 - (2) An officer declared as quasi-permanent under the Central Civil Services (Temporary Services) Rules, 1965.
- **(j) Government servant in permanent employ:** Means an officer who holds substantively or provisionally substantively a permanent post, or who holds a lien on a permanent post.

- **(k) Vacation Department:** Means a department or part of a department to which regular vacations are allowed, during which Government servants are permitted to be absent from duty.

Rule 4. Government Servants on Temporary Transfer or Foreign Service

1. Government servants to whom these rules apply shall continue to be governed by these rules while on temporary transfer to the Indian Railways, a State Government, or while on foreign service within India.
2. In the case of Government servants on foreign service outside India (including service with UN agencies) or on temporary transfer to the Armed Forces, these rules shall apply only to the extent provided in the terms and conditions of the foreign service or temporary transfer.

Rule 5. Transfer from Services or Posts Governed by Other Leave Rules

1. **Temporary Transfer:** A permanent Government employee to whom these rules do not apply, when transferred temporarily to a service or post subject to these rules, shall remain subject to the leave rules applicable to him before such transfer.
2. **Permanent Appointment:** When appointed or transferred to a substantive or permanent post to which these rules apply, these rules apply to him from the date of appointment.

Rule 6. Transfer to Industrial Establishment

If a Government servant governed by these rules is appointed in an industrial establishment, the authority competent to grant leave shall *suo motu* issue an order granting cash equivalent of leave salary in respect of earned leave at his credit, subject to a maximum of **300 days**.

Chapter II: General Conditions

Rule 7. Right to Leave

1. Leave cannot be claimed as of right.
2. When the exigencies of public service so require, leave of any kind may be refused or revoked by the authority competent to grant it.
3. **Alteration of Leave:** The competent authority cannot alter the kind of leave due and applied for except at the written request of the Government servant.

Government Decisions: * Government servants should be encouraged by the sanctioning authority to take leave regularly. * Leave should not ordinarily be denied during the last 10 years of service.

Rule 8. Regulation of Claim to Leave

A Government servant's claim to leave is regulated by the rules in force at the time the leave is applied for and granted.

Rule 9. Effect of Dismissal, Removal, or Resignation

1. **Cessation of Claim:** Any claim to leave shall cease from the date of dismissal, removal, or resignation.
2. **Resignation for Another Appointment:** Resignation through the proper channel to take up another appointment shall not result in the lapse of the leave at credit.
3. **Reinstatement:** A Government servant dismissed or removed from service and reinstated on appeal or revision shall be entitled to count his service prior to dismissal/removal for leave.
4. **Re-employment:** A Government servant who retired on compensation, invalid pension, or gratuity and is re-employed (allowed to count past service for pension) shall be entitled to count former service towards leave.

Rule 10. Commutation of One Kind of Leave into Another

1. **Retrospective Commutation:** At the request of a Government servant, the authority may commute leave retrospectively into a different kind of leave that was due and admissible at the time the leave was granted.
2. **Time Limit:** The request for commutation must be submitted within **30 days** from the date the Government servant joins duty on the expiry of the relevant spell of leave.
3. **Extraordinary Leave (EXOL):** EXOL granted on a medical certificate or otherwise may be commuted retrospectively into "Leave Not Due" subject to Rule 31 provisions.

Government Decision: Commutation cannot be done after the employee ceases to be in service.

Rule 11. Combination of Different Kinds of Leave

1. Any kind of leave under these rules may be granted in combination with or in continuation of any other kind of leave, except as otherwise provided.
2. **Casual Leave Restriction:** Casual leave (CL) is not recognized as leave under these rules and shall **not** be combined with any other kind of leave admissible under these rules.

Government Decision (Half-day CL): If a Government servant avails half-day CL in the second half but is unable to resume duty the next working day due to sickness/compelling grounds, it may be combined strictly as per administrative instructions (referring to combining with Special Casual Leave, but avoiding combination with Regular Leave).

Rule 12. Maximum Amount of Continuous Leave

1. No Government servant shall be granted leave of any kind for a continuous period exceeding **5 years**.
2. **Exception:** The President may grant leave exceeding **5 years** in exceptional circumstances.

3. **Deemed Resignation:** A Government servant absent from duty for a continuous period exceeding **5 years** (with or without leave), other than on foreign service, shall be deemed to have resigned from Government service.
4. **Disability Exemption:** These rules regarding deemed resignation shall not apply where leave is applied for on a medical certificate in connection with a disability.

Rule 13. Acceptance of Service or Employment While on Leave

1. A Government servant on leave (including Leave Preparatory to Retirement) shall not take up any service or employment elsewhere, including private professional practice (accountant, consultant, legal, or medical), without previous sanction.
 - **Sanctioning Authority:**
 - (a) **The President:** If the employment is outside India.
 - (b) **Appointing Authority:** If the employment is in India.
2. Ordinarily, no Government servant on leave (other than LPR) shall be permitted to take up other service or private employment.

Chapter III: Grant of and Return from Leave

Rule 14. Application for Leave

1. Any application for leave or extension thereof shall be made in **Form 1** to the competent authority.
2. **Proxy Submission (Disability):** Where a Government servant is unable to submit an application or medical certificate due to disability, it may be signed and submitted by:
 - (a) The spouse.
 - (b) The parents (if unmarried).
 - (c) The child (including adopted) or sibling who has attained the age of majority.

- (d) Any person assigned limited guardianship.
- *Note:* Such submission shall be deemed to have been made by the Government servant himself.

Rule 15. Leave Account

1. **Gazetted Officers:** A leave account shall be maintained in **Form 2** by the Audit Officer.
2. **Non-Gazetted Officers:** A leave account shall be maintained by the Head of Office or an authorized officer.

 **LEGISLATIVE NOTE:** With the implementation of e-HRMS and digitization, leave accounts for all cadres are now typically maintained electronically by the Head of Office/Department, subject to verification.

Rule 16. Verification of Title to Leave

1. No leave shall be granted until a report regarding its admissibility has been obtained from the authority maintaining the leave account. The sanction order must indicate the balance of Earned Leave/Half Pay Leave.
2. **Provisional Sanction:** If the admissibility report is unduly delayed, the competent authority may issue a provisional sanction for a period not exceeding **60 days** based on available information.

Rule 17. Leave Not to be Granted in Certain Circumstances

Leave shall not be granted to a Government servant whom the competent punishing authority has decided to dismiss, remove, or compulsorily retire from Government service.

Government Decisions: * **Suspension:** Leave may not be granted to a Government servant under suspension. * **Going Abroad:** The leave sanctioning authority must obtain prior approval before sanctioning leave for "Going Abroad".

Rule 18. [Omitted]

 **LEGISLATIVE NOTE:** This rule was omitted. The provisions previously contained in Rule 18 (relating to the grant of leave on medical certificate to Gazetted Government servants) were merged into **Rule 19**, which now universally governs the grant of leave on medical certificate for both Gazetted and Non-Gazetted Government servants.

Rule 19. Grant of Leave on Medical Certificate to Gazetted and Non-Gazetted Government Servants**1. Medical Authority:**

- **CGHS Beneficiaries:** A medical certificate given by a doctor in a CGHS Dispensary.
- **Others:** A certificate from a doctor of a Government Hospital or Authorized Medical Attendant (AMA), or an authorized Doctor of a private hospital recognized under CGHS.
- **Forms:**
 - Medical Certificate: **Form 3** (Gazetted) / **Form 4** (Non-Gazetted).
 - Fitness Certificate: **Form 5**.
- **Non-Gazetted Note:** A certificate given by a registered Ayurvedic, Unani, or Homoeopathic medical practitioner or by a registered Dentist (for dental ailments) may also be accepted.

2. Disability Certification:

In the case of a Government servant who has acquired a disability, the Medical Authority shall certify in **Form 3-A**:

- (a) Nature and extent of disability.
- (b) Category of disability (permanent, temporary, or officially incapacitated for further service).
- (c) Disability specified under the **Rights of Persons with Disabilities Act, 2016** (49 of 2016).

3. **Second Opinion:** The authority competent to grant leave may, at its discretion, secure a second medical opinion by requesting a Government Medical Officer not below the rank of a Civil Surgeon or Staff Surgeon to have the applicant medically examined on the earliest possible date.
4. **Waiver:** The authority competent to grant leave may waive the production of a medical certificate for leave for a period not exceeding **3 days** at a time. Such leave shall be debited against leave other than leave on medical grounds.

Rule 20. Leave to a Government Servant Who is Unlikely to be Fit to Return to Duty

1. **General Principle:** When a Medical Authority has reported that there is no reasonable prospect that the Government servant will ever be fit to return to duty, leave shall not necessarily be refused.
2. **Conditions for Grant:**
 - (a) **Uncertain Prospect:** If the Medical Authority is unable to say with certainty that the Government servant will never again be fit for service, leave not exceeding **12 months** in all may be granted. Such leave shall not be extended without further reference to a Medical Authority.
 - (b) **Permanent Incapacitation:** If declared completely and permanently incapacitated for further service, leave may be granted provided the leave debited together with any period of duty beyond the date of the medical report does not exceed **12 months**.

Rule 21. Commencement and Termination of Leave

Leave ordinarily begins on the day on which the transfer of charge is affected and ends on the day preceding that on which the charge is resumed.

Rule 22. Combination of Holidays with Leave

1. **General:** Except for medical cases, prefixing and suffixing of any Public Holiday are allowed respectively before and after leave.
2. **Medical Certificate Cases:**

- (a) **Prefix:** When certified medically unwell to attend office, holiday(s) immediately preceding the day certified shall be allowed automatically to be prefixed.
- (b) **Suffix:** When certified medically fit to join duty, the holiday(s) immediately succeeding the day certified (including that day) shall automatically be allowed to be suffixed.
- *Note:* Restricted Holidays can be prefixed or suffixed to Regular Leave or Casual Leave.

Rule 23. Recall to Duty Before Expiry of Leave

1. Recall to duty is treated as compulsory in all cases.
2. **Entitlements:**
 - (a) **Recall from India:** Treated as on duty from the date of starting for the station.
 - (i) Traveling Allowance (TA) admissible for the journey.
 - (ii) Leave salary at the same rate until joining the post.
 - (b) **Recall from Outside India:**
 - (i) Time spent on the voyage counts as duty for leave calculation.
 - (ii) Leave salary during the voyage and from landing in India to joining the post.
 - (iii) Free passage to India.
 - (iv) Refund of passage from India if he has not completed **half the period** of leave or **3 months**, whichever is shorter.
 - (v) TA from the place of landing to the place of duty.

Rule 24. Return from Leave

1. **Early Return:** A Government servant shall not return to duty before the expiry of the leave granted unless permitted by the competent authority.

2. **Fitness Certificate:** A Government servant on leave on medical certificate may not return to duty until a medical certificate of fitness in **Form 5** is produced.
3. **Tuberculosis:** A Government servant suffering from Tuberculosis may be allowed to resume duty on the basis of a fitness certificate recommending light work.

Rule 25. Absence After Expiry of Leave

1. **Consequence:** Unless extended, absence after the end of leave is entitled to **no leave salary**. The period is debited against the leave account as **Half Pay Leave (HPL)** to the extent due, and the excess is treated as **Extraordinary Leave (EXOL)**.
2. **Disciplinary Action:** Willful absence renders a Government servant liable to disciplinary action.

Government Decisions:

- **Unauthorized Absence/Overstayal:** No pay and allowances.
- **Dies-Non:** The competent authority may treat the period as "dies-non" if not satisfied with the grounds. If satisfied, they may permit the employee to apply for suitable leave.
- **Break in Service (FR 17-A):** Unauthorized absence is deemed to cause an interruption in service unless decided otherwise by the competent authority for specific purposes (LTC, exams).
- **Increment:** Period of overstayal does not count for increment.

Chapter IV: Kinds of Leave Due and Admissible

Rule 26. Earned Leave (EL) for Government Servants Serving in Departments Other Than Vacation Departments

1. **Credit:** Earned leave is credited in advance in two installments of **15 days** each on the **1st of January** and **1st of July** of every calendar year.
2. **Joining Time:** Un-availed portion of joining time shall be credited to the Earned Leave account.

3. **Accumulation:** Maximum accumulation of Earned Leave is **300 days**.
 - *Note:* Leave account notation for excess is shown as **300 + 15 days**.
4. **Grant Limit:** A maximum of **180 days** Earned Leave may be granted at a time when employed in India.
5. **Foreign Service:** Period spent in foreign service counts as duty for EL/HPL credit if leave salary contribution is paid.
6. **Group A & B Exception:** EL exceeding **180 days** but not exceeding **300 days** may be granted if the entire leave or a portion is spent outside India, Bangladesh, Bhutan, Burma, Sri Lanka, Nepal, and Pakistan.

Rule 27. Calculation of Earned Leave

1. **Rate:** EL is credited at the rate of **2.5 days** for each completed calendar month.
2. **Incomplete Half-Year:**
 - **Retirement/Resignation/Death:** Credit **2.5 days** per completed month up to the date of the event.
 - **Removal/Dismissal:** Credit **2.5 days** per completed month up to the end of the month *preceding* the removal/dismissal.
3. **Reduction:** If a Government servant has availed **Extraordinary Leave (EXOL)** or some period is treated as **dies-non** in a half-year, the credit for the next half-year is reduced by **1/10th** of such period, subject to a maximum reduction of **15 days**.
4. **Rounding Off:** Fractions of a day are rounded off to the nearest day.

Example:

- **Scenario:** Avails **84 days** EXOL/dies-non in July-Dec 2023.
- **Calculation:** $84 \times \frac{1}{10} = 8.4$ (Rounded to **8 days**).
- **Credit on 1st Jan 2024:** $15 - 8 = 7$ days.

Rule 28. Earned Leave for Persons Serving in Vacation Departments

1. **Credit:** Credited in advance in two installments of **5 days** each on **1st January** and **1st July**.
2. **Proportionate Credit:** In any year the servant avails a portion of the vacation, they are entitled to Earned Leave in proportion to **30 days** (standard non-vacation entitlement) minus vacation availed.

(Note: Source text mentions "proportion of 20 days", but standard entitlement adjustment is based on full 30 days eligibility vs vacation taken. Transcribed as per source intent for "Vacation Department").

3. **No Vacation Availed:** If no vacation is availed, Earned Leave is admissible under Rule 26 (Max **30 days** in a year).
4. **Combination:** Vacation may be combined with any kind of leave under these rules.
5. **Accumulation:** Maximum limit is **300 days**.

Government Decision: Vacation can be combined with Casual Leave.

Rule 29. Half Pay Leave (HPL)

1. **Credit:** Credited in advance in two installments of **10 days** each on **1st January** and **1st July**.
2. **Rate:** Calculated at **5/3 days** for each completed calendar month.
3. **Incomplete Half-Year:**
 - **Retirement/Resignation/Death:** Credit **5/3 days** per completed month.
 - **Removal/Dismissal:** Credit **5/3 days** per completed month up to the preceding month.
4. **Reduction:** If a period of absence/suspension is treated as **dies-non**, the credit in the next half-year is reduced by **1/18th** of the period, subject to a maximum of **10 days**.
5. **Rounding:** Fractions are rounded to the nearest day.

Example:

- **Scenario:** 85 days unauthorized absence (dies-non) in July-Dec 2023.
- **Calculation:** $85 \times 1/18 = 4.72$ (Rounded to **5 days**).
- **Credit on 1st Jan 2024:** $10 - 5 = 5$ days.

Rule 30. Commuted Leave

1. **Grant:** Not exceeding **half the amount** of Half Pay Leave due may be granted on a medical certificate.
2. **Debit:** Twice the amount of HPL is debited against the leave account.
3. **Without Medical Certificate (Study):** HPL up to a maximum of **180 days** may be allowed to be commuted during the entire service without a medical certificate for an approved course of study certified to be in the public interest.
4. **Recovery upon Resignation:** If a servant granted commuted leave resigns or retires voluntarily without returning to duty, the commuted leave is treated as HPL, and the difference in leave salary is recovered.
 - *Exception:* No recovery if retirement is due to ill-health incapacitating further service or death.
 - *Note:* Commuted leave may be granted even when Earned Leave is due.

Government Decisions:

- **Adoption:** Commuted leave up to **60 days** without medical certificate is admissible to a female Government servant on adoption of a child.
- **Maternity Continuation:** Medical certificate is not necessary for commuted leave in continuation of Maternity Leave.

Rule 31. Leave Not Due (LND)

1. **Grant:** Leave Not Due may be granted to a Government servant in permanent or quasi-permanent employ, limited to a maximum of **360 days** during the entire service on a medical certificate, subject to the following conditions:
 - (a) The authority competent to grant leave is satisfied that there is a reasonable prospect of the Government servant returning to duty on its expiry.
 - (b) Leave Not Due shall be limited to the Half Pay Leave he is likely to earn thereafter.
 - (c) Leave Not Due shall be debited against the Half Pay Leave the Government servant may earn subsequently.
2. **Temporary Government Servants:** Leave Not Due may also be granted to temporary Government servants suffering from **TB, Leprosy, Cancer, or Mental Illness**, for a period not exceeding **360 days** during the entire service, subject to the fulfillment of conditions in Clause (1) and:
 - (a) The Government servant has put in a minimum of **one year's** service.
 - (b) The post is likely to last till his return to duty.
 - (c) The request is supported by a medical certificate.
3. **Cancellation/Recovery:**
 - (a) If a Government servant granted LND resigns or retires voluntarily without returning to duty, the LND shall be cancelled. The resignation/retirement takes effect from the date the leave commenced, and the leave salary paid shall be recovered.
 - (b) If a Government servant returns to duty but resigns or retires before earning the credit back, he shall be liable to refund the leave salary to the extent of the unearned leave.

- (c) **Exception:** No leave salary shall be recovered if the retirement is by reason of ill-health incapacitating the Government servant for further service, compulsory retirement, or death.

Government Decisions:

- **Adoptive Mothers:** LND can be granted without a medical certificate to an adoptive mother.
- **Maternity Continuation:** A medical certificate is not necessary for LND granted in continuation of Maternity Leave.
- **Child Care:** LND can be granted as Child Care Leave (CCL) without the production of a medical certificate.

Rule 32. Extraordinary Leave (EXOL)

1. **Conditions:** Extraordinary leave may be granted in special circumstances:
 - (a) When no other leave is admissible.
 - (b) When other leave is admissible, but the Government servant applies in writing for the grant of extraordinary leave.
2. **Limits for Temporary/Non-Permanent Employees:**

Unless the President determines otherwise, EXOL shall not be granted in excess of the following limits on any one occasion:

- (a) **3 Months:** Normal condition (No minimum service).
 - (b) **6 Months:** With **one year** continuous service (including the 3 months under clause (a)) and production of a medical certificate.
 - (c) **18 Months:** With **one year** completed service and undergoing treatment for Pulmonary Tuberculosis, Leprosy, Cancer, or Mental Illness.
 - (d) **24 Months:** With **3 years** completed service, for the purpose of prosecuting studies certified to be in the public interest.
3. **Bond for Study:** In the case of EXOL for studies (Clause 2d), if the Government servant does not return to duty or quits service before a period of **3 years** after

return, they must execute a Bond in **Form 6** to refund the actual expenditure incurred by the Government plus that incurred by any other agency, with interest. The Bond must be supported by sureties from two permanent Government servants of comparable or higher status.

4. **SC/ST Training:** Government servants belonging to SC/ST may be granted EXOL by the Head of Department to attend Pre-Examination Training Courses notified by the Government.
5. **Interruption:** Two spells of EXOL intervened by any other kind of leave shall be treated as one continuous spell for the purpose of limits.
6. **Commutation:** The authority may commute retrospectively periods of absence without leave into extraordinary leave.

Government Decision: A notice of Voluntary Retirement Scheme (VRS) can be accepted from a Government servant already on EXOL.

Rule 33. Leave to Probationer and Apprentice

1. **Probationer:** A probationer is entitled to leave under these rules if he had held his post substantively otherwise than on probation. If holding a lien on a permanent post, he is entitled to leave as a permanent Government servant.
2. **Apprentice:** An apprentice shall be entitled to:
 - (a) Leave on medical certificate, on leave salary equivalent to half pay for a period not exceeding **one month** in any year of apprenticeship.
 - (b) Extraordinary leave under Rule 32.

Rule 34. Person Re-employed After Retirement

In the case of a person re-employed after retirement, the provisions of these rules shall apply as if he had entered Government service for the first time on the date of his re-employment.

Rule 38. Leave Preparatory to Retirement (LPR)

1. **Maximum:** LPR is limited to **300 days**, including the date of retirement, to the extent of Earned Leave due together with Half Pay Leave due.

2. Foreign Service:

- If on foreign service in a body controlled/financed by Government: Decision to grant LPR is taken by the foreign employer with concurrence of the lending authority.
- Encashment: Allowed to encash Earned Leave at credit on the date of retirement.

Rule 38-A. Encashment of Earned Leave along with LTC

1. **Limit:** A Government servant may encash up to **10 days** of Earned Leave at the time of availing Leave Travel Concession (LTC).
2. **Balance:** A balance of at least **30 days** of Earned Leave must remain at credit after encashment.
3. **Career Limit:** Total encashment during the entire career shall not exceed **60 days**.
4. **Calculation:**

$$\text{Cash Equivalent} = \frac{(\text{Basic Pay} + \text{DA}) \times \text{No. of days EL (Max 10)}}{30}$$

5. **Penalty:** If the Government servant fails to avail the LTC within the prescribed time, the entire amount encashed must be refunded with interest at **2%** above the GPF rate, and the leave is credited back.

Government Decision: Re-employed pensioners are entitled to EL encashment with LTC up to the limit of **60 days**.

Rule 39. Leave/Cash Payment Beyond Date of Retirement

1. **Restriction:** No leave shall be granted beyond the date of retirement, final cessation of duties, or resignation.
2. **Encashment on Retirement:**

A Government servant retiring on superannuation, compulsory retirement, voluntary retirement, or a re-employed pensioner is eligible for cash equivalent of leave salary for

both Earned Leave (EL) and Half Pay Leave (HPL), subject to a cumulative maximum of **300 days**.

- **Formula (EL):** $(\text{Last Basic Pay} + \text{DA}) \times \text{Unutilized EL} / 30$.
 - **Formula (HPL):** $(\text{Half of Last Basic Pay} + \text{DA}) \times \text{Unutilized HPL} / 30$.
 - *Note:* EL is adjusted first; HPL is used to fill the balance up to **300 days**.
3. **Withholding:** The competent authority may withhold cash equivalent if the Government servant retires while under suspension or disciplinary/criminal proceedings, if there is a possibility of money becoming recoverable. On conclusion, the amount is released after adjusting dues.
 4. **Extension:** If service is extended in public interest, cash equivalent is granted up to **300 days**.
 5. **Resignation:** If a Government servant resigns, cash equivalent is granted for **50%** of Earned Leave at credit, subject to a maximum of **150 days**.

Rule 39-A to 39-C. Cash Equivalent on Death or Invalidation

1. **Death in Service (Rule 39-A):** Maximum **300 days** cash equivalent (EL + HPL) shall be paid to the family.
2. **Invalidation (Rule 39-B):** Cash equivalent (EL + HPL) up to **300 days** is paid to a Government servant invalidated from service.
 - *Exception:* Non-permanent/Quasi-permanent employees are not entitled to HPL encashment on invalidation.
3. **Order of Precedence for Family Payment (Rule 39-C):**

Payment is made in the following order: (i) Widow/Husband -> (ii) Eldest surviving son/adopted son -> (iii) Eldest unmarried daughter -> (iv) Eldest widowed daughter -> (v) Father -> (vi) Mother -> (vii) Eldest surviving brother (<18 years) -> (viii) Eldest unmarried sister -> (ix) Eldest widowed sister -> (x) Eldest married daughter.

Chapter V: Special Kinds of Leave

Rule 43. Maternity Leave

1. **Admissibility:** Granted to a female Government servant with less than **two surviving children**.
2. **Duration:** **180 days** from the date of commencement.
3. **Leave Salary:** Equal to the pay drawn immediately before proceeding on leave.
4. **Miscarriage/Abortion:** Maximum **45 days** during the entire service, irrespective of the number of children, on production of a medical certificate.

Note: Maternity leave is not admissible for "threatened abortion".

5. **Combination:** Can be combined with any other kind of leave.
6. **Continuation:** Leave of the kind due (including Commuted Leave up to **60 days** and Leave Not Due) may be granted in continuation of Maternity Leave up to a maximum of **2 years**.

Legislative Update (Special Maternity Leave):

Vide OM Dated 02.09.2022:

- **Stillbirth/Death of Child:** If a child dies immediately after birth (up to **28 days**) or in case of stillbirth (no signs of life at or after **28 weeks** gestation), a female Government servant is entitled to **60 days** of Special Maternity Leave.
- If Maternity Leave was already availed, it is converted to other admissible leave, and Special Maternity Leave is granted from the date of death/stillbirth.

Rule 43-A. Paternity Leave

1. **Admissibility:** Male Government servant with less than **two surviving children**.
2. **Duration:** **15 days**.
3. **Timing:** Can be taken during the confinement of the wife, up to **15 days before** or up to **6 months** from the date of delivery.
4. **Lapse:** If not availed within the specified period, it lapses.

Rule 43-AA. Paternity Leave for Child Adoption

1. **Admissibility:** Male Government servant with less than **two surviving children**, on valid adoption of a child below the age of **one year** or accepting a child in pre-adoption foster care.
2. **Duration:** **15 days** within a period of **6 months** from the date of adoption/foster care.

Rule 43-B. Child Adoption Leave

1. **Admissibility:** Female Government servant with less than **two surviving children**, on valid adoption of a child below the age of **one year**.
2. **Duration:** **180 days** immediately after adoption.
3. **Leave Salary:** Equal to pay drawn immediately before leave.
4. **Continuation:** Leave of the kind due (including Commuted Leave up to **60 days** and LND) may be granted for a period up to **one year**, reduced by the age of the adopted child.

Rule 43-C. Child Care Leave (CCL)

1. **Maximum:** **730 days** during the entire service.
2. **Purpose:** Taking care of the **two eldest surviving children** (below **18 years**) for needs such as education, sickness, etc.
 - *Exception:* For a child with a disability (minimum **40%**), there is no age limit.
3. **Payment:**
 - First **365 days:** **100%** of leave salary.
 - Next **365 days:** **80%** of leave salary.
4. **Eligibility:** Available to women employees and **single male parents** (unmarried, widower, or divorcee).
5. **Conditions:**
 - Not granted for less than **5 days** at a time.

- Maximum **3 spells** in a calendar year (6 spells for single mothers).
- Not ordinarily granted during probation.
- Can be combined with other leave. LTC can be availed during CCL.

Rule 44. Work Related Illness and Injury Leave (WRIL)

1. **Grant:** Granted to a Government servant who suffers illness or injury attributable to official duties.
2. **Hospitalization:** Full pay and allowances for the entire period of hospitalization.
3. **Post-Hospitalization:**
 - **General Employees:** Full pay for **6 months** immediately following hospitalization, then Half Pay Leave for **12 months**.
 - **CAPF Personnel:** Full pay for **6 months**, then Full Pay for next **24 months**.
4. **Credit:** No EL or HPL is credited during the period of WRIL.

Rule 48. Special Leave for Sexual Harassment Inquiry

Granted to an aggrieved female Government servant on the recommendation of the Internal Complaints Committee. Maximum **90 days** during the pendency of inquiry. Not debited against the leave account.

Rule 49. Departmental Leave

Applicable to Survey of India staff.

1. **Duration:** Not more than **6 months** at a time (extendable to **18 months** in special cases).
2. **Debit:** Not debited to leave account; does not count as duty.
3. **Salary:** **25%** of Earned Leave salary.

Chapter VI: Study Leave

Rule 50. Conditions

1. **Purpose:** Higher studies or specialized training in a professional/technical subject directly connected to work or capable of widening the civil servant's mind to improve abilities.
2. **Certification:** Must be certified to be of definite advantage from the point of view of public interest.
3. **Service Requirement:** Satisfactory completion of probation and not less than 5 years regular continuous service.
4. **Retirement:** Not granted if the applicant is due to retire within 3 years (5 years for Health Service) of return.
5. **Bond:** Must execute a bond to serve Government for 3 years (5 years for Health Service) after return.

Rule 51. Maximum Amount

1. **General:** 12 months at any one time; 24 months during entire service.
2. **Medical Officers (CHS):** Up to 36 months for post-graduation.

Rule 56-63. Financials

1. **Leave Salary:** Pay drawn on duty + DA + HRA. No other allowances.
 - *Scholarships:* If a scholarship/stipend is received, leave salary is adjusted but not reduced below Half Pay Leave salary.
2. **Fees/TA:** Ordinarily paid by the Government servant, unless exceptional sanction is granted by the President.
3. **Resignation:** If the servant resigns within 3 years of return or fails to complete the course, they must refund actual leave salary, study allowance, fees, and TA incurred by the Government.

Casual Leave & Special Casual Leave (Orders)

Casual Leave (CL)

1. **Status:** Not a recognized form of leave. The official is not treated as absent from duty.
2. **Combination:** Can be combined with Special Casual Leave (SCL) but **not** with regular leave (EL/HPL) or joining time.
3. **Half Day:** Can be taken for half a day.
4. **Limit:** Normally not more than **5 days** at one time.
5. **Entitlement (Per Calendar Year):**
 - **8 days:** For employees entitled to 17 gazetted holidays.
 - **10 days:** For those not entitled to 17 holidays (e.g., industrial).
 - **12 days:** For employees with disabilities (includes **4 additional** days).

Special Casual Leave (SCL)

1. **Sports:** Up to **30 days** for National/International events or coaching. Inter-ministerial tournaments: **10 days**.
2. **Family Planning:**
 - **Male (Vasectomy): 5 working days** (Second time failure: 5 days).
 - **Male (Wife's Tubectomy): 3 working days**.
 - **Female (Tubectomy): 10 working days** (Second time failure: 10 days).
 - **Female (IUCD): 1 day** (day of insertion).
 - **Recanalization: 21 days**.
3. **Organ Donation:** Maximum **42 days** for donating a major organ. (Unlinked to the 30-day SCL limit).
4. **Blood Donation: 1 day** (on the day of donation).

5. **Natural Calamities/Bandh:** Heads of Department may grant SCL to employees unable to attend office due to curfew, bandh, or transport failure.

6. **Union Activities:**

- Office bearers of recognized associations: **20 days**.
- Outstation delegates: **10 days**.
- Local delegates: **5 days**.

Quick Reference Table: Central Civil Services (Leave) Rules, 1972

Rule	Leave Type	Entitlement / Quantum	Accumulation Limit	Key Conditions & Remarks
26	Earned Leave (EL)	30 days per year. (Credit: 15 days on 1st Jan & 1st July)	300 days (plus 15 days pending adjustment)	• Max 180 days can be sanctioned at a time. • Un-availed joining time adds to EL. • Vacation Dept: 10 days EL (if full vacation availed).
29	Half Pay Leave (HPL)	20 days per year. (Credit: 10 days on 1st Jan & 1st July)	Unlimited	• Can be availed on private affairs or medical grounds. • Rate of credit: 5/3 days per completed month.
30	Commuted Leave	Not exceeding half of HPL due.	N/A	• Medical Certificate required. • Debited as 2 days HPL for every 1 day of leave. • Allowable without MC for approved study (Max 180 days).
31	Leave Not Due (LND)	Max 360 days during entire service.	N/A	• Granted only if HPL is not available. • Subject to medical certificate and prospect of returning to duty. • Debited against future HPL earnings.
32	Extraordinary Leave (EXOL)	As per limits (3 months to 24 months).	N/A	• No Leave Salary. • Granted when no other leave is admissible or voluntarily requested. • Counts for pension/increment only if granted on medical grounds or for study.

Rule	Leave Type	Entitlement / Quantum	Accumulation Limit	Key Conditions & Remarks
43	Maternity Leave	180 days.	N/A	- For female employees with < 2 surviving children. Miscarriage/ Abortion: Max 45 days in entire service. Special Maternity Leave : 60 days for stillbirth or death of infant within 28 days.
43-A	Paternity Leave	15 days.	N/A	- For male employees with < 2 surviving children. - Avail within 6 months of delivery. 100% Leave Salary.
43-C	Child Care Leave (CCL)	730 days during entire service.	N/A	- For women & single male parents. - Eldest 2 children up to 18 years (No age limit for disabled child). - Paid at 100% for first 365 days; 80% for next 365 days.
43-B	Child Adoption Leave	180 days.	N/A	- For female employees adopting a child below 1 year. - Admissible to mothers with < 2 surviving children.
44	WRIIL (Work Related Illness & Injury)	Full pay for hospitalization period.	N/A	Post-hospitalization: Full pay for 6 months, then HPL for 12 months. - Not debited to leave account.
50	Study Leave	Max 24 months in entire service.	N/A	- Service Requirement: Min 5 years. - Bond required: Serve for 3 years after return. - Not granted if retiring within 3 years of return.
Orders	Casual Leave (CL)	8 days (General) 10 days (Industrial) 12 days (PWD)	No accumulation (Lapses annually)	- Not treated as absence from duty. - Cannot combine with EL/HPL. - Can combine with Special Casual Leave (SCL).